



महाराष्ट्र MAHARASHTRA

2023

CN 747037



FORM B

[Rule 3(6)]

प्रधान मुद्रांक कार्यालय, मुंबई
प.मु.वि.क. ८०००००९
25 JUN 2024
सक्षम अधिकारी

श्रीम.एल. एस. सांगळे

NOTED & REGISTERED
Sr. No. 9333 Page No. 29
Date 07/11/2024

AFFIDAVIT CUM DECLARATION

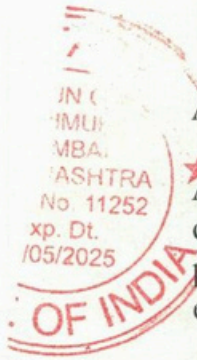
Affidavit cum Declaration of **Mr. Kamlesh Nandy** duly authorized by the promoter **Chembur Vaibhav CHSL** of the proposed project **Atharva Vaibhav**, vide its authorization dated **06/11/2024**;

I, **Mr. Kamlesh Nandy**, duly authorized by the promoter **Chembur Vaibhav CHSL** of the proposed project **Atharva Vaibhav**, do hereby solemnly declare, undertake and state as under:

1. That promoter **M/s. Atharva Developers** has a legal title Report to the land on which the development of the project is proposed



Kamlesh



AND

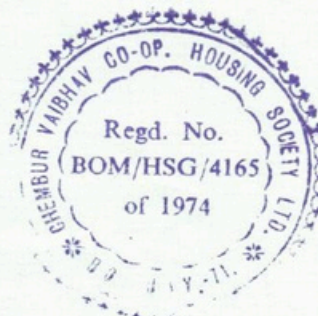
A legally valid authentication of title of such land along with an authenticated copy of the agreement between such owner **Chembur Vaibhav CHSL** and promoter **M/s. Atharva Developers** for development of the real estate project is enclosed herewith.

2. That the project land is free from all encumbrances.
3. That the project shall be completed by promoter in the stipulated time as mentioned in the registration of project; 31.12.2028
4. a) For new project:

That seventy per cent of the amounts realized by me/promoter for the real estate project from the allottees, from time to time, shall be deposited in a separate account to be maintained in a scheduled bank to cover the cost of construction and the land cost and shall be used only for that purpose.
5. That the amounts from the separate account shall be withdrawn in accordance with Rule 5.
6. That the promoter shall get the accounts audited within six months after the end of every financial year by a practicing Chartered Accountant, and shall produce a statement of accounts duly certified and signed by such practicing Chartered Accountant and it shall be verified during the audit that the amounts collected for a particular project have been utilized for the project and the withdrawal has been in compliance with the proportion to the percentage of completion of the project.
7. That the promoter shall take all the pending approvals on time from the competent authorities.
8. That the promoter shall inform the Authority regarding all the changes that have occurred in the information furnished under sub-section (2) of section 4 of the Act and under rule 3 of these rules, within seven days of the said changes occurring.
9. That the promoter have/has furnished such other documents as have been prescribed by the rules and regulations made under the Act.
10. That I/the promoter shall not discriminate against any allottee at the time of allotment of any apartment, plot or building as the case may be.



For Chembur Vaibhav CHSL



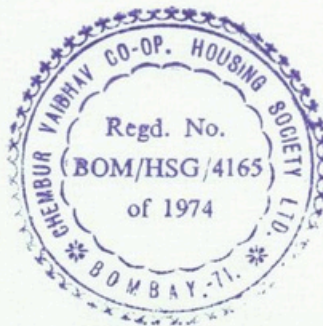

Secretary
Kamlesh Nandy
Deponent



Verification

The contents of my above affidavit cum Declaration are true and correct and nothing material has been concealed by me therefrom.

Verified by me at Mumbai on this 06TH day of November 2024.



For Chembur Vaibhav CHSL

Secretary
Kamlesh Nandy
Deponent

BEFORE ME

ARUN G. DESHMUKH
REGD. No. 11252 B.Com., LL.B.,
ADVOCATE HIGH COURT
NOTARY GOVT. OF INDIA
Office: Shop No. 1, Vinayak Darshan, Apartment,
Genesh Peth Lane, Dadar (W), Mumbai-400 028

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